PSYCHOANALYTIC TECHNIQUES SUPPORTING BIO-JURIDICS IN SPACE

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"What are astronauts?
And what am I? . . .
In outer space or here on earth
I accept all as due my birth . . .
I do my job way out in space
But, God forgive, the friends erased."[1]

I. BIO-ECOLOGICAL AND PSYCHOANALYTIC METHODOLOGIES FOR EVOLVING SPACE STATION LEGAL REGIMES

Over the past few years, at least one student of the law has groped privately and publicly to establish an effective articulation reflecting the biological foundations of space law. Specific emphasis has been upon the biological underpinnings of value-forming processes occurring in the unique life-support environment of long duration, confined space flight.[2] Now, it is essential to focus on the very important complementary methodology of studying law as a response to bio-ecological dictates. That complementary approach is the technique embodied in what has been referred to as psychoanalytic jurisprudence.[3]

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[1]Quotation from the poem, "What are Heroes?" in A. Worden, Hello Earth—Greetings From Endeavor 78 (1974). Several of the poems in this particular collection reflect the sense of separateness and alien philosophy shared by many astronauts who return to their friends and acquaintances, but who retain what they believe is a perspective on Earth existence which is unfathomable by non-participants in manned space flights. This is a growing phenomenon that apparently tends to make it difficult for astronauts to identify with certain Earth values while functioning in space. The "we—they" frame of mind is verified by empirical data through actual situations of long duration, isolated, and confined existence with manipulable sensory deprivation/overload capability. *See generally,* C. May, The Man-Related Activities of the Gulf Stream Drift Mission, NASA TMX-64548 (1970).

[2]*See* the following articles by G. Robinson: NASA's Space Station and the Need for Quantifiable Components of a Responsive Legal Regime, 6 Int'l Lawyer 292 (1972); Man's Physical and Juridical Relationships in Space: A Key to Quantification of His Cultural Activities on Earth, 2 Man-Environment Systems (1972); Scientific Renaissance of Legal Theory: The Manned Orbiting Space Station as a Contemporary Workshop, 8 Int'l Lawyer 20 (1974); Metalaw-Prolegomena to Quantification of Jus Naturale, 40 Geo. Wash. L. Rev. 709 (1972).

[3]*See generally,* A. Ehrenzweig, Psychoanalytic Jurisprudence (1971). Also by A. Ehrenzweig: A Psychoanalysis of the Insanity Plea—Clues to the Problems of Criminal Responsibility and Insanity in the Death Cell, 73 Yale L.J. 425 (1964); A Psychoanalysis of Negligence, 47 Nw. U.L. Rev. 855 (1953); Psychoanalytical Jurisprudence: A Common Language for Babylon, 65 Colum. L. Rev. 1331 (1965). *See specifically,* Bienenfeld, Prolegomena to a Psychoanalysis of Law and Justice (Parts I and II), 53 Calif. L. Rev. 957, 1245 (1965).

Despite the leveling nature of Christianity and the United States Constitution, both of which "create" all men equal and all women equal with men, there are certain basic biological dictates distinguishing man from men, and women from all the others, every bit as much in the neurophysiology of value-forming processes as in the obvious morphological distinctions. The objective question whether these quantifiable distinctions must be preserved or suppressed by law is integral to determining how to engineer social behavior to satisfy ultimate goals and objectives set by a given community. Unfortunately, it often is impossible to determine the success of the laws imposed without observing the long-range bio-ecological responses to them by the community individuals acting in concert or disconsonantly. In any event, whether societal groupings are Earth indigenous, space station, or lunar surface oriented, the economically and politically induced intellectual panaceas do not work—as the great blood baths of history have shown us, and the lessons of which civilizations as a whole seem inclined to ignore.[4] Such panaceas will not be fruitful for establishing effective and accurately responsive legal regimes among space station and lunar community inhabitants.

Inferences must be drawn from facts which are known (no matter how transitory in the evolution of scientific knowledge), *i.e.*, in the present context, inferences and extrapolations must be drawn from the biomedical data derived from long-duration, confined space missions, in order to formulate responsive social engineering principles, and consequent legal regimes. Disciplined inferences also must be drawn through psychoanalytic techniques to provide the complementary perspective of individualistic and collective interpretation of the bio-ecological data. At best, this approach is elusive; at worst, it is probably no more than premature and quite ineffectively articulated by the instant layman in psychological and psychoanalytic disciplines.[5] Under any circumstances, it must be kept in mind for the moment that these two techniques are more readily applicable to analyzing interpersonal relationships, such as those characterized by command structures, than the less personal relationships, such as those encompassed by commercial law.

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[4]It is fallacious to refute this type of observation by pointing to the human atrocities performed by the Third Reich in the name of science. Increasing knowledge deriving from science research—basic and applied in the form of technology—permit us now to detect and understand such atrocious abuse of scientism. To detect and understand is to permit effective corrective action. As observed by Margery W. Shaw, Director, Medical Genetics Center, Health Sciences Center at the University of Texas, Houston, "I am not afraid that genetic screening will lead to genocide, nor that abortion will lead to infanticide, as many have warned. If we need checks on our behavior the law will provide them." Shaw, Genetic Counseling, 184 Science 751 (1974).

[5]Historically, it is interesting to note that the legal profession has studiously ignored (not rebutted) psychoanalysis as a technique in understanding the effectiveness of legal regimes vis-à-vis individuals and societal groupings. See the emotional reaction in Mechem, The Jurisprudence of Despair, 21 Iowa L. Rev. 669 (1936), wherein he discusses (and according to Ehrenzweig, misinterprets) the innovative work set forth in E. Robinson, Law and the Lawyers (1935). R. Bienenfeld, Rediscovery of Justice (1949), a commendable work, is still largely ignored in the United States, as are some of Ehrenzweig's principal works. The book reviews of A. Ehrenzweig, Psychoanalytic Jurisprudence (1971) which have been prepared by lawyers and jurists receive this particular work of Ehrenzweig very well. Unfortunately, there is very little on-going juridical discussion, and almost no interest shown by clinical psychologists.

Quite basically, psychoanalytic techniques encompass the theory that all internally sensed and externally experienced phenomena are never forgotten by an individual; rather, they are retained in limbo in the unconscious mind, and consist principally of wishes, impulses, inclinations, flashes of insight, and the like. They are constantly at the threshold of the conscious mind in varying degrees, depending upon the intensity of the experience, and suppression of distractions and other inhibiting factors. Many of the so-called subconscious compulsions which are inhibited, are squeezed into other channels of expression which often lead to departure from the norms of behavior and reasoning. Psychoanalysis employs techniques to identify such subconscious drives for expression, and if those drives become too far removed from the norm a given psychoanalytic technique may assist in helping an individual recognize and embrace acceptable behavior patterns in a community. This corrective facet is very important for space societies where behavior patterns and value-forming norms are affected significantly by the life support environment, alien nature of a mission and unknown risks involved, confined and totally functional architecture, unique command-structuring relationships among space society members and with Earth oriented control and management units, *ad infinitum.*

Psychoanalysts are much at variance in the techniques they use, as well as in their interpretations of the natures of these subconscious drives. Sigmund Freud believed the basic nature of such drives to be sexually oriented. However, with the passage of time and work by disciples of Freud, a precursory nature of sex lost its fashionable appeal and become only one factor—albeit an important one—influencing the character of a much greater overall drive.

Essentially, it is Freud's technique which remains clinically important to two basic theories in psychiatry: (1) the perspective or methodology which observed the personality as the synthesized sum of numerous separate and distinct subconscious drives, a theory which has yielded to the present *gestalt* methodology, and described as (2) an approach which considers both the individual and communal, or societal, personality as a whole. This approach responds sensitively to the evidence that all human behavior patterns reflect one complex primitive drive, *i.e.,* the "expression of the total personality in a satisfying way." One of the principal purposes of contemporary psychiatry is to find the source of guilt in a subconscious drive or set of drives and remove it as a means of assisting the individual in putting abnormal behavior and thought patterns in acceptable perspective. This is particularly true and beneficial for space station inhabitants whose concepts of the norms of behavior can be *abnormal,* according to the values and standards of Earth dwellers.

Assuming the Earth-orbiting space station is a very efficient example of a self-contained legal system,[6] the two principal areas of juridical interest—other than the unique considerations that must be given the need for isolated and integrated command structures—are the situations involving civil negligence and criminal responsibility. To

[6]From the present author's personal experience, it is interesting—although certainly discouraging—to observe lawyers and jurists at various domestic and international legal fora consistently re-inventing the jurisdictional wheel of "space law." One indication is that all are discussing the same subjects, but none are using the same symbols of communication, perhaps as in the instant discussion.

evaluate these two legal regimes and their applicability to activities of space station participants, one must first recognize—if not accept—the unique effects on value-forming processes of the multifaceted influences of an alien life-support system. It is within this unique framework that the benefits of psychoanalytic techniques for space jurisprudence must be examined. Only two of many examples are discussed below, *i.e.*, the natures of negligence and of criminal insanity.

II. PSYCHOANALYSIS OF NON-CRIMINAL WRONGDOING BY SPACE STATION PARTICIPANTS

In many ways it can be said that the body of criminal law derived from its much more primitively-oriented progenitor we refer to as "the law of torts." Laws surrounding the typical slip-and-fall case, last-clear-chance doctrine, defective merchandise, etc., appear on the surface to indicate that western society at least has evolved beyond the unbridled revenge-seeking of certain primitive societal groupings which sanction the individual's demand of an eye for an eye, and a tooth for a tooth. Presumably, we are at that stage in the development of civil negligence law where the principal concern is for the protection of an individual's physical integrity, *i.e.*, we seek protection and remedy rather than punishment.

Any psychological desire for revenge is presumed to be mitigated—if not totally dissipated—by the knowledge of the forthcoming soothing effects of legal remedies. Prima facie, this objective is embodied in the concept of no-fault automobile insurance.[7] For example, at this point it has been determined that the economic damage of automobile accidents is so great that the total repression of individual revenge must be assured. This is the result of no easy intellectual exercise. One need only to observe how long contemporary civilizations have struggled with the no-fault insurance concept, and how narrow its present scope, to confirm that it is not considered a popular panacea even among the most liberal jurisprudents.

However, even though broad and sophisticated concepts of absolute and strict liability have been exploited in areas other than automobile accidents to minimize the economic burdens of proof and lengthy litigation, the basic need for revenge still exists. It is an integral component of the "bosom of justice" as reflected in the fact that fault of one party or the other still must be determined. Even in the most innocent of situations, the most unavoidable of accidents, tortuous fictions and presumptions continue to be relied upon in our insistance on finding fault of one or more parties—even "where there is

[7] Although totally different socio-economic conditions presently exist from those of the 19th century, fault is still considered the real basis for civil liability just as it was in the 19th century. Liability without fault is still anathema to our legal thinking and language, and with relative ease one could find some theory of fault inherent in no-fault automobile liability insurance legislation evolving in Canada and the United States. In this respect, see A. Ehrenzweig, Negligence Without Fault (1951).

no fault in any moral sense."[8] And once we embrace fault-finding we embrace also the "reasonable man" criterion with its plethora of subjective, factual, and mythical interpretations. In any event, the need for finding fault, for seeking revenge, is ever present. The subsequent reliance on the reasonable (or normative) man has a particularly important bearing on how fault is found, or effective vengeance exacted, in the unique environment of manned space stations, lunar communities, or similar habitats with synthetic and alien life-support systems.

Retributive vengeance, in the form of tort principles designed to illuminate some fleeting and amorphous subconscious need to ascribe guilt, can be seen throughout legal history.[9] Even though economic and social intercourse among peoples and nations has become so extensive and sophisticated that numerous unintended hazards can be shown to derive from factors much more innocent than fuzzy allegations of individual or corporate malice, the law "has never quite abandoned its primitive assumption and presumption of fault."[10] Even today, the *true* accident is nothing less than the oft-quoted, unexplainable, and rarely proved "act of God." Negligence, although objectively conceived and designed to provide a basis for recovery from innocently-caused harm, still directly implies blame for subconscious fault. Its genesis is in the physiological shaping of an expressed need of an individual to protect himself (and ultimately a societal grouping with which he identifies) by seeking retributive vengeance, or blame in another for harm suffered.[11]

At the onset of the industrial revolution, the mechanical enterprises and ensuing increase in hazards to individuals and communities logically should have encouraged recognition of new principles of loss distribution by focusing on the results of the damages rather than the causes—or fault—of the losses. Instead, fault finding in the form of strict and absolute liability became even more entrenched. The rationale lay in holding the community harmless from innovative, unknown, and risky activities by making the initiator of the hazardous activity negligent in his conduct. The consequence was the

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[8]Ehrenzweig, A Psychoanalysis of Negligence, 47 Nw. U.L. Rev. 855,857 (1953), where the author observes at 856 that "the tremendous increase of 'hazardous activities' requiring adjustment of both avoidable and inevitable loss rather than a 'wrongdoer's' admonition, and the spread of liability insurance serving primarily the former, have created a discrepancy between reality and law which seriously endangers our administration of justice." It is submitted that this type of discrepancy between the fictional foundations of law and reality cannot be accommodated efficiently in the small and tightly controlled societies of space stations and lunar habitats. The consequence may well be the total ignoring of essential behavioral facts that need conscious accommodation.

[9]For only a few of the many interesting histories addressing the role of "guilt" in civil negligence law, see generally, O. Holmes, The Common Law (1881); Winfield, The Myth of Absolute Liability, 42 L. Q. Rev. 37 (1926); 1 Thorpe, Ancient Laws and Institutions of England 85 (1840); and A. Kocourek & J. Wigmore, Primitive and Ancient Legal Institutions (1935).

[10]Ehrenzweig, *supra* note 8, at 861.

[11]For a discussion of practical examples of this problem, see generally Malone, Damage Suits and the Contagious Principle of Workmen's Compensation, 12 La. L. Rev. 231 (1952).

self-imposition of strict standards of conduct to avoid financial losses from claims.[12] The "reasonable man" reached his full maturity in the ensuing decades of judge-made law. There is no indication that in the era of building long-duration space societies none of that fault-finding bloom of maturity would fade from the "reasonable astronaut."

Despite all the evolutionary reforms in the law of torts and the retribution rationale of fault finding in negligence, all such principles and reforms will prove under close scrutiny to be at best no more than a simple shift in the character of subconscious societal aggression. Further, where we obtain satisfaction in aggression, both Freudian and Jungian psychoanalytic techniques show that the individual and/or society pays for that satisfaction with feelings of guilt derived from empathy. It often seems that confession by a wrongdoer or admission of a crucial fact by a witness, whether in a criminal or civil case is the only relief for a punishment-seeking aggressor with guilt feelings. In short, proper blame for a wrongdoing is every bit as important, and perhaps more so, to the aggrieved person or community than the recovery or effective distribution of losses. As observed by Mr. Justice Holmes, and equally as applicable to civil as criminal law, "a law which punished conduct that would not be blame-worthy in the average member of the community would be too severe for the community to bear."[13]

The foregoing observations offer three basic points about the foundations of tort law, and which are formulated by psychoanalytic techniques:

1. The law of torts, particularly as it embodies the fault-finding concept of negligence, does not rest alone on intellectual recognition of the protective need to make an injured individual or community physically and/or economically whole; rather it is an acceptable vehicle for an injured party to seek what appears to be a genetically-coded form of retributive vengeance.

2. The "reasonable man" criterion necessitates not only extrinsic knowledge of an individual's behavior patterns (*i.e.*, physiologically induced aberrations, etc.), but the ability as well to have a certain empathy with a harmful situation and the wrongdoer involved in order to make application of that criterion less comparative and more stable.

3. Any primitive law in tortious situations, to be acceptable and successful, must punish blameworthy tortious conduct with which the average member of the sanctioning community can identify.

It can be determined from these three conclusions that the most effective evolution of space station or lunar community legal regimes dealing strictly with the interpersonal relations of space society members will come from valuations and judgments only of those members, themselves.

[12]For a discussion that touches on the struggle between reform of negligence law and the "yearning backward toward morality" as the basis of fault liability, see Malone, This Brave New World—A Review of "Negligence Without Fault," 25 S. Cal. L. Rev. 14, 16-17 (1951).

[13]O. Holmes, The Common Law 50 (1881).

With respect to the applicability of these three observations to noncriminal, wrongful behavior of long-duration space station or lunar community inhabitants, it must be thoroughly understood that a compelling facet of man's nature (as recognized through a methodological synthesis of biological data and psychoanalytic techniques) is to seek and obtain retribution for an actual or sensed aggrievement imposed by another. The need goes much deeper than the satisfaction of some amorphous, prevailing concept of morality or ethic, or an equitable and fair distribution of economic losses. The problems of engineering civil "fault laws" to meet the needs of space station or lunar community inhabitants become very acute and unique in a confined, long-duration flight where the alien life-support system produces definite neuro-physiological anomalies reflected in changes in the norms usually attendant to human value-forming processes.

Use of the "reasonable man" criterion, to determine whether fault or negligence of an Earth dweller or space station inhabitant is the causative factor of certain damages or harm suffered by a station inhabitant, is an extremely precarious undertaking. The bio-physical influences on value-forming processes of station inhabitants are alien to those on Earth. These influences are significant to the point of rendering any comparison of the *reasonable* man in a normal Earth environment with a speculative vision of the reasonable man on a long-duration space mission, totally useless. Further, psychological synthesis of anomolous physiological data, deriving from the alien bio-ecological influences of a space station's synthetic life-support system, would vitiate any effectiveness of comparative psychoanalytic techniques relying on Earth-indigenous values or norms. Totally new psychoanalytic technique quidelines would have to be established by space station participants, themselves, in order to help formulate effective principles of tort law responsive to those particular alien environments and interpersonal relationships.

Finally, both Freudian and Jungian psychoanalytic techniques need to be employed to ensure that proper space station community values evolve relating to blameworthy (negligent) conduct of station participants. Integral to this is the development of a second set of values by Earth inhabitants which will permit them to accommodate, if not accept, the alien community values controlling fault finding for certain detrimental, non-criminal, behavior among space station inhabitants. Perhaps even a third set of values will be necessary to establish guidelines for negligent behavior between space station inhabitants and those on Earth. In any event, the methodological synthesis of bio-ecological data and psychoanalytic techniques could prove critical to an effective and timely engineering of this particular corner of exceedingly neglected space-station jurisprudence.

III. PSYCHOANALYSIS OF CRIME AND CRIMINAL RESPONSIBILITY RELATING TO SPACE STATION INHABITANTS

In discussing the use of psychoanalysis to assist in establishing an effective body of criminal law for space stations and lunar communities, two questions should be kept in mind: (1) why do societal groupings punish criminal activity, *i.e.*, why do they secure social integrity, enforce *moral* or *ethical* principles, or exercise genetically coded individ-

ual (and perhaps communal) retributory vengeance; and (2) is there a unique nature of insanity in a space environment to serve as the basis for criminal excusability?

One of the principle issues integral to determining the appropriateness and effectiveness of criminal sanctions is whether the alleged offender's prescribed punishment is preferable to enlightened reformation of his criminal behavior patterns, or even to his complete release from formal community custody. It is submitted that the question cannot be answered by either psychiatrist or jurisprudent until psychoanalytic techniques have helped both in comprehending why civilizations create crimes for which violators are punished, and why the communities in fact apply such punishment.

Indeed, Professor Ehrenzweig has stated that a "rational answer to this question would require the weighing of such conflicting factors as the victim's, the offender's and, most important, society's conscious and subconscious wishes and interests." He continues by observing that:

> Neither the judge nor the psychiatrist is willing or indeed able to do that weighing . . . [since] one of the factors determining the issue between punishment and release has always been . . . irrational: namely society's urge for retributory vengeance.[14]

Although Ehrenzweig is correct about the role of retributory vengeance in application of criminal sanctions, such vengeance is not so easily characterized as irrational. It is not too difficult to define vengeance as a quantifiable, characteristic pattern of morphophysiological behavior responding to the hereditary/environmental interplay which, at a given time, dictates individual self-preservation—or perhaps even collective, communal preservation. Psychoanalytic techniques can assist in the synthesizing and articulation of the meaning of basic biological data manifest as "retributory vengeance." In fact, it can assist in determining whether such vengeance is biologically mandated or *culturally* retributory.

Concisely, bio-ecological data synthesized by psychoanalytic techniques can provide a common and workable understanding of precisely what retributory vengeance means. For the sake of brevity, it is submitted here that retributory vengeance is not solely an intellectually articulated method (influenced by prevailing cultural values) for maintaining a cohesive societal grouping; nor is it a genetically dictated, impassively neutral, morphophysiological response of an individual or society to physical threat. Rather, it is a synthesis of both; and the synthesis is recognizable in large part through the application of historicism and certain classic, if not obsolete, techniques of psychoanalysis introduced by Freud, Jung, and certain of their disciples.

Increasing quantity and quality of scientific data, and insight provided by relatively sophisticated scientific methodologies, have lifted much of the veil of ignorance surrounding behavior patterns of certain criminal deviants. They have permitted psychiatrists and jurists to cooperate fruitfully in helping to establish effective criminal reform actions.

[14]Ehrenzweig, A Psychoanalysis of the Insanity Plea—Clues to the Problems of Criminal Responsibility and Insanity in the Death Cell, 73 Yale L.J. 425 (1964).

Those actions, often considered *irrational* by jurist and psychiatrist alike, have become quite rational in the sense of manifesting a recognizable/quantifiable, cause/effect conclusion. With respect to the need to punish, retribution is required to help bear the blow to the individual's or community's physical integrity and security, as well as counteract certain temptations of the individual or community, *i.e.*, prove to themselves that crime really does not pay.[15] The concommitant of this self-identity and the need to punish is that:

> [t]he greater the pressure coming from repressed impulses, the more aware becomes the Ego that it needs the institution of punishment as an intimidating example, acting against one's own primitive world of repressed instinctual desires . . . . In other words, the louder man calls for the punishment of the lawbreaker, the less he has to fight against his own repressed impulses.[16]

In view of this, the nature of insanity as a defense must be sufficient to satisfy the so-called retributory revenge impulses. Again, as observed by Ehrenzweig:

> Where aggression or vengeance are thus involved, we must be on our guard when "humanitarians" attempt to expand the defense of insanity by a progressive identification of crime and sickness. They are asking society to forego its primitive satisfactions . . . .[17]

The history of the insanity rule in the United States is a study of medical science and juridics grappling and sparring with each other to shift the burden of defining criminal insanity. Ehrenzweig asks:

> Do we call insane one who fails to recognize as a "wrong" what was wrong by the standards of his community, or only what was wrong by his own standards? If the latter, any error should negate criminal responsibility (which we make depend on the faculty not the fact of cognition). Or is it enough if the accused was aware of the ethical wrongness of his act, though he thought it legally unobjectionable?[18]

These questions bring the discussion to the posing of three basic inquiries: (1) what does retributory vengeance have to do with space station legal regimes; (2) what is the relative importance of the essence of criminal insanity to space station inhabitants; and (3) what is the importance of psychoanalytic techniques in formulating legal principles applicable to space station inhabitants?

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[15] *Id.* at 435. Ehrenzweig quotes in n. 41 from 1 S. Simpson & J. Stone, Law and Society 132 (1948): "When the Areiopagos pronounced a capital sentence on a murderer it was carried out by the public excutioner in the presence of the relatives of the deceased."

[16] Alexander & Staub, The Criminal, the Judge, and the Public 215 (rev. ed. 1956).

[17] Ehrenzweig, *supra* note 14, at 438.

[18] *Id.* at 428-29.

Responding to the last question first, psychoanalytic jurisprudence as a methodology for establishing space station legal regimes uses basic bio-ecological data and interprets it through techniques of psychoanalysis. In this fashion, predictive value is given to individual and community synthesis of this data into manifest judgments and conduct.

With respect to the first area of inquiry, it is important to grasp the intense difficulty of establishing interpersonal relationships in a confined, long-duration space mission carried out in an alien and synthetic life-support system. The intensity of difficulty in establishing these relationships becomes critical when Earth-formulated values and consequent legal positivisms are imposed as keystones of such interactions. Autonomic reactions and their intellectually articulated trappings, as well as the more genetically precipitated primitive drives, can become dominant in such a morpho-neurophysiological stress situation and manifest themselves as aberrant behavior patterns within the unresponsive or improper context of Earth indigenous values and judgment perspectives.

Without recognition of the bio-ecological deviations of retributory vengeance in both the individual and communal nature of man, repression of any need to express a sense of vengeful retribution could precipitate incredibly destructive violence. The need, then, is to establish a space station legal regime(s) based upon (1) cultural values peculiar to space station participants, and (2) effective reorientation of attitudes of Earth inhabitants to the alien—perhaps even abhorrent—values formulated by such space station personnel.

The second of the three areas of inquiry dealing with the essence of criminal *mens rea* and its role in legal regimes of space societies, probes such difficult problems as programmed priority of personnel expendability and survival homicide.[19] The importance of this area of inquiry becomes even more evident where certain activity or behavior of individuals or groups in space stations and lunar communities is criminal according to Earth indigenous values and legal positivisms, but is carried out in a predictable, repetitive fashion as essential to maintaining the space society and accomplishing its mission objectives.

IV. CONCLUSION

A conclusion to this type of discussion is at best offensively presumptive. On the other hand, there is nothing unacceptably presumptive in the observations that (1) interactive behavior patterns and value-forming processes of individuals in space stations and future lunar communities, may depart substantially from normative behavior and

[19] *See* Fuller, The Case of the Speluncean Explorers—In the Supreme Court of Newgarth, 4300, 62 Harv. L. Rev. 616 (1949). *See also,* P. Read, Alive (1974), in which the multitude of shifting legal, political, theological, and personal attitudes surrounding the survival values adopted by the Uruguayan rugby team are described in some detail.

values of Earth indigenous communities; and (2) it would be incredibly out of step and contrary to reality to continue to consider space station and lunar community behavior patterns as simply an extension of Earth evolved value-forming processes, *i.e.*, to continue extending our own legal positivisms to all outer-space activities.

One of the principal tasks for mankind to undertake in anticipation of long-duration manned space stations, lunar communities, etc., and a task which at best has been given only cursory consideration, particularly in international fora, is the determination by general or specific consensus of just why mankind is extending his societal capabilities into outer space. Some of the obvious questions, the complete exploration of which would precede a consensus and form a good part of the complexion of consequent space legal regimes are: (1) Why does mankind wish to inhabit outer space? (2) Are the reasons strictly profit oriented? (3) Is there a genetically-compelling drive for man and society to inhabit outer space? (4) Should Earth-indigenous societies or management/control units continue to regulate or control all facets of long-duration, manned missions? (5) Regardless of any alien value-forming processes of space-station or other long-duration-flight participants, should space societies be encouraged to evolve their own cultures restricted to space existence, and develop legal regimes accordingly? (6) Should mankind consider space societies as consisting of *homo alterios* and further designate them as carriers of mankind's cultures? (7) If so, should intense efforts be undertaken to determine and select by general and/or specific consensus cultural characteristics to be carried into space and expanded upon there in a manner compatible with the realities of a unique (as opposed to hostile) space environment? (8) To what extent can and should Earth-indigenous attitudes be altered to accommodate alien—perhaps repugnant—values evolved by space societies? (9) Are these factors being considered, even in an embryonic fashion, by the United States and the Soviet Union in preparation of the Apollo-Soyuz Test Program scheduled for 1975? (10) Are Earth societies and cultures prepared to sever the umbilical with an established space society?

All of these questions and their innumerable implications must be studied and consensus reached in each case to ensure a stable framework for the evolution of Earth-Space relationships and consequent legal regimes. Biomedical and other environmental data available from the Skylab Program and related projects are sufficiently comprehensive and definitive to permit us a certain existential posture for observing and evaluating space-station societies. It is necessary not to confuse such data with amorphous, transitional issues of prevailing morality and ethic.

Such issues, as reflections of the requirements and desires of Space and Earth societies, can be observed and evaluated by the various psychoanalytic techniques available. Concisely, bio-data systems and psychoanalysis constitute two very helpful and complementary methodologies for determining the true nature of sentient space existence, the relation of such to Earth cultures, and the consequent legal regimes effectively responsive to these relationships. Psychoanalysis, at a minimum, can be an

extremely helpful tool in determining the nature of evolving separateness between space station participants and "Earth sitters."

"Umbilicals

Breaking free

Being born

Eternity . . . ."[20]

[20] Quotation from the poem, "Cycle" in A. Worden, Hello Earth 62 (1974).